

UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

AMERICAN SECURITIES ASSOCIATION and
CITADEL SECURITIES LLC,

Petitioners,

v.

UNITED STATES SECURITIES
AND EXCHANGE COMMISSION,

Respondent.

No. 26-10936

**CERTIFIED LIST DESCRIBING
THE RECORD IN PROCEEDINGS
BEFORE THE SECURITIES AND EXCHANGE COMMISSION**

Pursuant to Section 25(a)(2) of the Securities Exchange Act of 1934, 15 U.S.C. 78y(a)(2), and Federal Rule of Appellate Procedure 17, the Securities and Exchange Commission certifies that the items listed below constitute the record upon which the order under review in this Court was entered, with the exception of materials that are publicly available such as statutes, rules, judicial decisions, Commission orders and releases, books, treatises, and other similar materials.¹

¹ The order under review considered certain comments received in connection with prior Commission proceedings. *See* Order Approving an Amendment to the National Market System Plan Governing the Consolidated Audit Trail, as Modified by the Commission, Regarding Implementation of a Revised Funding Model, 91 Fed. Reg. 13,410, 13,415 & nn.73-74 (Mar. 19, 2026) (identifying the prior comment letters considered). Those prior comments are publicly available at <https://www.sec.gov/comments/4-698/4-698-a.htm>.

<u>No.</u>	<u>Description</u>
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| 1. | Notice of Filing of Amendment to the National Market System Plan Governing the Consolidated Audit Trail Regarding CAT Funding Model, Securities Exchange Act Release No. 103960 (Sept. 12, 2025), published at 90 Fed. Reg. 44,910 (Sept. 17, 2025). |
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Comment Letters (<https://www.sec.gov/comments/4-698/4-698-a.htm>)

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| 2. | Gentry Collins, CEO, The American Free Enterprise Chamber of Commerce, Oct. 17, 2025. |
| 3. | Steffen N. Johnson, Wilson Sonsini Goodrich & Rosati Professional Corporation on behalf of the Financial Industry Regulatory Authority, Inc. (FINRA), Oct. 17, 2025. |
| 4. | Stephen John Berger, Managing Director, Global Head of Government and Regulatory Policy, Citadel Securities, Oct. 17, 2025. |
| 5. | Joseph P. Corcoran, Managing Director and Associate General Counsel, and Katie Kolchin CFA, Managing Director, Head of Equity & Options Market Structure, The Securities Industry and Financial Markets Association (SIFMA), Oct. 21, 2025. |
| 6. | Christopher A. Iacovella, President & Chief Executive Officer, American Securities Association, Oct. 31, 2025. |
| 7. | Patrick Sexton, EVP, General Counsel & Corporate Secretary, The Cboe Exchanges (CBOE), Oct. 31, 2025. |
| 8. | Joanna Mallers, Secretary, PTG, Nov. 24, 2025. |
| 9. | Robert Walley, CAT NMS Plan Operating Committee Chair, Consolidated Audit Trail, LLC, Dec. 18, 2025. |
| 10. | Gerald O'Hara, Vice President & Assistant General Counsel, and Katie Kolchin CFA, Managing Director, Head of Equity & Options Market Structure, The Securities Industry and Financial Markets Association (SIFMA), Dec. 19, 2025. |

<u>No.</u>	<u>Description</u>
11.	Robert Walley, CAT NMS Plan Operating Committee Chair, Consolidated Audit Trail, LLC, Jan. 14, 2026.
12.	Stephen John Berger, Managing Director, Global Head of Government & Regulatory Policy, Citadel Securities, Jan. 30, 2026.
13.	Steffen N. Johnson, Wilson Sonsini Goodrich & Rosati Professional Corporation on behalf of the Financial Industry Regulatory Authority, Inc. (FINRA), Jan. 30, 2026.
14.	Marcia E. Asquith, Corporate Secretary, EVP, Board and External Relations, Financial Industry Regulatory Authority, Inc. (FINRA), Jan. 30, 2026.
15.	Howard Meyerson, Managing Director, Financial Information Forum, Feb. 10, 2026.
16.	Christopher A. Iacovella, President & Chief Executive Officer, American Securities Association, Feb. 10, 2026

Meetings with SEC Officials (<https://www.sec.gov/comments/4-698/4-698-a.htm>)

17. Memorandum from the Division of Trading and Markets regarding a December 12, 2025, meeting with the Participants, dated Dec. 12, 2025.
18. Memorandum from the Division of Trading and Markets regarding a November 20, 2025, meeting with the Participants, dated Dec. 19, 2025.
19. Memorandum from the Division of Trading and Markets regarding a January 13, 2026, meeting with the Participants, dated Jan. 13, 2026.
20. Memorandum from the Division of Trading and Markets regarding a January 30, 2026, meeting with the Participants, dated Jan. 30, 2026.
21. Memorandum from the Division of Trading and Markets regarding a February 4, 2026, meeting with the Participants, dated Feb. 4, 2026.

<u>No.</u>	<u>Description</u>
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Additional Materials

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| 22. | Order Instituting Proceedings to Determine Whether to Approve or Disapprove an Amendment to the National Market System Plan Governing the Consolidated Audit Trail, Securities Exchange Act Release No. 104234 (Nov. 21, 2025), published at 90 Fed. Reg. 54,438 (Nov. 26, 2025). |
| 23. | Order Approving an Amendment to the National Market System Plan Governing the Consolidated Audit Trail, as Modified by the Commission, Regarding Implementation of a Revised Funding Model, Securities Exchange Act Release No. 105003 (Mar. 16, 2026), published at 91 Fed. Reg. 13,410 (Mar. 19, 2026). |

For the Commission, by its Secretary, pursuant to delegated authority.



J. Matthew DeLesDernier
Deputy Secretary

Dated: April 27, 2026

CERTIFICATE OF SERVICE

I hereby certify that on April 27, 2026, I electronically filed the foregoing Certified List Describing the Record in Proceedings Before the Securities and Exchange Commission using the Court's CM/ECF system, which will send notice to all the parties.

/s/ Daniel E. Matro
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Dated: April 27, 2026